Republic of the Philippines
Department of Science and Technology
PHILIPPINE COUNCIL FOR HEALTH RESEARCH AND DEVELOPMENT
Gen. Santos Ave., Bicutan, Taguig, City

MEMORANDUM OF AGREEMENT

Project Title: ***Maternal and Child Health Services vis-à-vis Gender Based Belief System***

KNOWN ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT is made and entered into by and between:

The **PHILIPPINE COUNCIL FOR HEALTH RESEARCH AND DEVELOPMENT (PCHRD)** hereinafter referred to as "**Funding Agency,**" a government entity and an attached agency of Department of Science and Technology (DOST), duly existing and pursuant to RA 2067 (NSDB, 1958), reorganized under E.O. 784 (NSTA, 1982) and E.O. 128 (DOST, 1987) with principal office address at Saliksik Building, DOST Compounds, Gen. Santos Avenue, Bicutan, Taguig City represented herein by its Executive Director III, **DR. JAIME C. MONTOYA**, for the funding and monitoring of the above-cited project as mandated by law;

DR. JAIME C. MONTOYA
Executive Director III, PCHRD

The **DEPARTMENT OF SCIENCE AND TECHNOLOGY REGIONAL OFFICE NO. V (DOST II)**, in behalf of the **BICOL CONSORTIUM FOR HEALTH RESEARCH AND DEVELOPMENT (BCHRD),** hereinafter referred to as the "**Monitoring Agency,**" a government entity and an attached agency of DOST, duly existing and created under the laws of the Philippines, with principal office address at Regional Government Center, Tiwi Coastal Road, Legazpi City, Albay 4500, herein represented by its Regional Director, **DIR. ROMMEL R. SERRANO**;

DIR. ROMMEL R. SERRANO
Regional Director, DOST V

- and -

The **PARTIDO STATE UNIVERSITY** hereinafter referred to as the "**Implementing Agency**", with principal office address at San Juan Bautista Street,Goa, Camarines Sur, herein represented by its President, **DR. RAUL G. BRADECINA** for the implementation of the above-cited project.

WITNESSETH:

WHEREAS, the above-mentioned project was approved by the PCHRD Executive Director on **15 May 2023**;

NOW THEREFORE, for and in consideration of the foregoing premises, the PARTIES hereby agree to the following terms and conditions:

DR. RAUL G. BRADECINA
President, Partido State University

I. OBJECTIVES OF THE PROJECT

The study generally aims to examine the relationship of the gender-based belief systems of couples, decision-makers and implementers of health programs to the maternal and child health services of selected communities in the Partido District, Camarines Sur.

Specifically, the project aims to achieve the following:

1. Audit the maternal and child health programs and services of the barangays of Siruma, Garchitorena and Presentacion;

2. Monitor the measurable health indicators at the barangay level, as follows: no. of maternal health services, no. of child health services, no. of home visitation per month, no. of MCHS medicine dispensed per month, maternal mortality rate, infant mortality rate, premature and mature births, nutrition and malnutrition rate, and immunization rate;

3. Test the gender-based belief systems of selected reproductive-age mothers, reproductive-age fathers, and reproductive couples;

4. Test the gender-based belief systems of decision-makers and implementers of maternal and child care services in the local communities;

5. Analyze the relationship of gender-based belief systems to the implementation and acceptance of maternal and child health services.

II. OPERATION OF THE PROJECT

The project shall be undertaken by the **Implementing Agency** in accordance with the approved project proposal (made part hereof as Annex "A") and the Revised DOST-GIA Guidelines (DOST A.O. No. 011, Series of 2020, DOST A.O. No. 013 Series of 2021, and DOST A.O. No. 017 Series of 2021) and shall be monitored by the **Monitoring Agency** in accordance with the DOST A.O. 014 Series of 2019 – DOST M&E Protocol.

III. FUNDING ASSISTANCE TO THE PROJECT

The **Funding Agency** shall provide grant in the amount of **FIVE HUNDRED EIGHTY-THREE THOUSAND EIGHT HUNDRED THIRTY-TWO PESOS AND FIFTY CENTAVOS ONLY (PHP 583,832.50)** for **ten (10) months** to be expended as allocated in the approved Project Line-Item Budget (made part hereof as Annex "B"). The Guidelines on the Grants-in-Aid Program (made part hereof as Annex "C") shall govern the implementation of the Project.

The activities, operation of books of accounts and records of the project shall be subject to inspection by the authorized representatives of the **Funding Agency** and its auditor, whenever necessary. GIA assistance shall be discontinued for any violation of the Grant Agreements such as fraud or falsity in the **Project Leader's** proposal, representation and warranties; when the results obtained do not justify further activity; or non-compliance or late submission of requirements by the **Implementing Agency** resulting in funds becoming unavailable. The Project Leader shall be notified at least forty-five (45) days before the date of termination.

All income/interest derived from the program/project, if any, and all unexpended balance shall be reported and reverted to the **Funding Agency** within three (3) months after the end of project period.

IV. PROJECT DURATION

The project shall be implemented from June 1, 2023 to March 31, 2024. It shall commence on the date specified above and in the approved line-item budget or immediately upon but not later than two (2) months after the release of funds.

V. FUND RELEASE AND UTILIZATION

The financial grant shall be released by the **Funding Agency** to the **Monitoring Agency**, subject to availability of funds, and accounting and auditing regulations. Subsequently, the Monitoring Agency will release the financial grant to the **Implementing Agency**, in accordance with the following schedule and submission of expected deliverables:

Target	Expected Outputs	Due Date	Amount of Release
Signing of Memorandum of Agreement (MOA)	• Signed Memorandum of Agreement	Immediately after signing of MOA	**PHP 420,951.25**
First quarter (June 1-August 31, 2023)			
Secondary data gathering and KII from person-in-charge at the MHO, RHU, and BHS of	Quarterly technical progress reports	September 30, 2023	-

DR. JAIME C. MONTOYA
Executive Director III, PCHRD

DIR. ROMMEL R. SERRANO
Regional Director, DOST V

DR. RAUL G. BRADECINA
President, Partido State University

Garchitorena, Presentacion, and Siruma	covering the period June 1 – August 31, 2023 Quarterly financial report, including report of checks issued or report of cash disbursed supported with original receipts		
Second quarter (September 1-November 30, 2023) Data cleaning and call back for all three study areas Interview with target respondents in Garchitorena, Presentacion, and Siruma (reproductive age mother and father, and decision makers and implementers	Quarterly technical progress reports covering the period September 1-November 30, 2023 Quarterly financial report, including report of checks issued or report of cash disbursed supported with original receipts	December 31, 2023	**PHP 124,915.00**
Third Quarter (December 1, 2023-March 31, 2024 Data cleaning and call back for all three study areas Data processing, interpretation, and analysis Report writing and submission	Quarterly technical progress reports covering the period December 1, 2023-March 31, 2024 Quarterly financial report, including report of checks issued or report of cash disbursed supported with original receipts	April 30, 2024	-
Report submission	Final Technical Report and Paper in Publishable Format Audited Financial Report	April 30, 2024 Within one month after completion of the project	**PHP 37,966.25**
		TOTAL	**PHP 583,832.50**

The **Implementing Agency** shall abide by the applicable rules and regulations on disbursement and utilization as mandated by the Funding Agency, to include in particular but not be limited to, rules on direct and indirect costs.

VI. PROJECT PROPERTIES

Project References: Mention of above-stated program/project in any and all publication, literature and information material in whatever media form shall state reference to the PCHRD as **Funding Agency**, DOST V/ BCHRD as **Monitoring Agency**, and Partido State University as **Implementing Agency**.

Intellectual Property (IP): Ownership and utilization of IPs and Intellectual Property Rights (IPRs) resulting from the project shall be governed by the Philippine Technology Transfer Act of 2009. The **Implementing Agency** and the Program/Project Leader acknowledge that they have read, understood and hereby agree to be bound by the provisions of the said Act. In case of conflict with other laws, rules or regulations, the said Act shall prevail.

DR. JAIME C. MONTOYA
Executive Director III, PCHRD

DIR. ROMMEL R. SERRANO
Regional Director, DOST V

DR. RAUL G. BRADECINA
President, Partido State University

Records of Equipment: The Property Officer/s of the **Funding** and **Implementing Agencies** shall establish a complete and centralized file of records of all equipment procured through DOST-assisted programs/projects which shall include the following: agency name, location of equipment, project title, current custodian or end-user accountable for the equipment, equipment purchased with description/specification, date of acquisition, property number and acquisition/actual cost. The said Property Officer of the Funding and Implementing Agencies shall update the directory and records of equipment every year based on Property Acknowledgment Receipt (PAR) and DOST Form 10-Project Monitoring and Field Evaluation Report submitted or Property Transfer Report (PTR)/Deed of Donation issued by the Funding Agency. Inventory of equipment shall be conducted by the **Monitoring Agency** during the implementation of the project.

Ownership of Equipment: All equipment purchased through grant funds are considered as government equipment owned by the **Funding Agency**. These may be transferred to the **Implementing Agency** or other implementers. The ownership of equipment may be transferred to the Implementing Agency or private institutions, upon completion of the program/project, subject to existing rules and regulations. The **Funding Agency** reserves the right to transfer ownership of such government equipment to government Research and Development Institutions, Higher Education Institutions or other private institutions through Property Transfer Reports (PTRs) or execution of Deed/s of Donation in compliance with existing government accounting and auditing laws, rules and regulations.

DR. JAIME C. MONTOYA
Executive Director III, PCHRD

DIR. ROMMEL R. SERRANO
Regional Director, DOST V

DR. RAUL G. BRADECINA
President, Partido State University

VII. ACCOMPLISHMENT AND FINANCIAL REPORTS

The **Implementing Agency** shall submit to the **Monitoring Agency** all technical and financial reports as mandated by the **Funding Agency**, pursuant to applicable rules and regulations. The **Monitoring Agency** shall submit said reports together with their appraisal report to the **Funding Agency** within one (1) month after the receipt thereof (see Sections X.B.1 and X.B.2 of the Revised DOST-GIA Guidelines for the details of submission).

VIII. AMENDMENT CLAUSE

Amendment: This agreement may only be amended in writing and by mutual consent of both parties.

Authority to Sign: Each person signing this agreement represents and warrants that he/she is duly authorized to sign this agreement. In the unlikely event that the person signing for the other party is not authorized to do so, the latter agrees to hold the other party/ies harmless for any cause or consequence of the absence/lack of authority to sign.

Arbitration: All disputes arising between and among the parties as to interpretation, operation or effect of any clause in the Agreement or any other difference between the parties shall first be resolved amicably. In case of failure, the Rules on Alternative Dispute Resolution (ADR) between national government agencies under Republic Act No. 9285 shall apply.

Indemnification: Each party shall indemnify, hold free and harmless, and defend at its own expense the other party/ies from and against all suits, claims, demands, and liabilities of any nature or kind, arising out of acts or omissions of the former, in the performance of any activity in connection with the Project, including those that may be initiated by its employees, workers, agents, subcontractors, or by any other entity or persons against said party by reason of or in connection to the program/project.

Venue: The parties further agree that in case of legal action requiring court litigations that may arise in the enforcement of this Agreement, the venue of court litigation shall be in the Court of Competent Jurisdiction sitting in Taguig City only.

Separability Clause: If any part or provision of this Agreement is held invalid or unconstitutional, the other provisions not affected thereby shall remain in force and in effect.

IX. COMPLIANCE WITH LAWS AND POLICIES

Matters affecting intellectual properties or intellectual property rights such as their ownership, protection and utilization, technology disclosure, exclusivity of the license, use of commercialization, establishment of spin-off firms, technologies for research use and sharing of income and benefits from technology commercialization shall be governed by existing Philippine laws on Intellectual Property, including RA 10055, and DOST Rules and Policies on Intellectual Property.

Full acknowledgment shall be given to DOST in case the research results are published or presented in various fora, seminars, and meetings. Such presentation should not prejudice the proprietary/confidential nature of the information for purposes of IP protection. The **Implementing Agency** shall likewise acknowledge the assistance of the **Funding and Monitoring Agencies** in relevant project-related activities.

Failure on the part of any party to comply with this provision shall be ground for written documented protest; further, repeated non-compliance with this provision by one party shall allow the aggrieved party to inform affected third parties in writing and require proper attribution through publication, with cost charged against the offending party.

DR. JAIME C. MONTOYA
Executive Director III, PCHRD

DIR. ROMMEL R. SERRANO
Regional Director, DOST V

DR. RAUL G. BRADECINA
President, Partido State University

IN CONSIDERATION of the mutual covenant set forth above, witness our signatures this _____ day of _____, 2023, at _____, Philippines.

Funding Agency:

PHILIPPINE COUNCIL FOR HEALTH RESEARCH AND DEVLEOPMENT

DR. JAIME C. MONTOYA
Executive Director III

Monitoring Agency:

DEPARTMENT OF SCIENCE AND TECHNOLOGY REGIONAL OFFICE NO. V

DIR. ROMMEL R. SERRANO
Regional Director

Implementing Agency:

PARTIDO STATE UNIVERSITY

DR. RAUL G. BRADECINA
President

Witnesses:

MS. PAULA JANE A. DE LEON
Officer-In-Charge, Institution Development Division,
Philippine Council for Health Research and Development

DR. BERNADETTE G. GUMBA
Project Leader

Certified Funds Available:

MS. JESSAMYN M. BUCLATIN
Accountant III,
Philippine Council for Health Research and Development
2023-05-0563

№23-1009

Line Item Budget

Project Title: ***Maternal and Child Health Services vis-à-vis Gender-Based Belief Systems***
Project Leader: ***Dr. Bernadette G. Gumba***
Implementing Agency: ***Partido State University***
Period Covered: ***June 1, 2023 - March 31, 2024***
Total number of months: ***10 months***

DETAILS	AS APPROVED	
	PCHRD	PSU
I. PERSONNEL SERVICES		
A. Salaries		
1 Project Administrative I @ P 18,703/mo x 10 mos.	187,030.00	-
1 Project Utility Aide II @ P 17,614/mo x 5 mos.	88,070.00	-
B. Honoraria		
1 Project Leader @ P 8,800/mo x 10 months	88,000.00	-
SUB-TOTAL FOR PS	**P 363,100.00**	**-**
II. MAINTENANCE AND OTHER OPERATING EXPENSES		
A. Communication Expenses	10,000.00	20,000.00
B. Traveling Expenses (local)	150,000.00	-
C. Supplies and Materials Expenses (smartphone)	20,000.00	75,000.00
D. Rent Expenses	-	10,000.00
E. Utility Expenses	-	20,000.00
SUB-TOTAL FOR MOOE	**P 180,000.00**	**125,000.00**
IV. INDIRECT COST (7.5%)		
Fees for Technical and Style Editors	20,000.00	-
Microsoft Office, Office Table/Chairs	20,732.50	-
SUB-TOTAL FOR INDIRECT COST	**P 40,732.50**	**-**
Summary		
I. Total for Personal Services	363,100.00	-
II. Total for MOOE	180,000.00	125,000.00
IV. Total for Indirect Cost	40,732.50	-
GRAND TOTAL	**P 583,832.50**	**125,000.00**

**Charged against 2023 PCHRD-GIA Funds*

CERTIFIED FUNDS AVAILABLE: PCHRD

JESSAMYN M. BUCLATIN
Accountant III
2023-05-0563

RECOMMENDING APPROVAL:

PAULA JANE A. DE LEON
Officer-In-Charge, IDD

APPROVED:

JAIME C. MONTOYA, MD, MSc, PhD, CESO II
Executive Director III

REPUBLIC OF THE PHILIPPINES) S.S.
CITY OF TAGUIG

BEFORE ME, A Notary Public for and in TAGUIG CITY this _____ day of JUN 07 2023 personally appeared:

Name	Govt. Issued ID	Issued at	Issued on
Dr. Jaime C. Montoya	JCM-P05-12033	Taguig City	19 July 2005
Dir. Rommel R. Serrano	CRN 006-0070-9230-3	Pasay City	
Dr. Raul G. Bradecina	P7648090B	LEGAZPI	21 SEP 2021

Known to me as the same persons who executed the foregoing Memorandum of Agreement and they acknowledged to me that the same is their free and voluntary act and deed and that of the entities they respectively represent.

This instrument, consisting of seven (7) pages, including this page whereon this Acknowledgment is written, signed by the parties together with their instrumental witnesses one each on every page thereof.

TO THE TRUTH OF FOREGOING, witness now my hand and seal on the date and place first above written.

Doc. No. 66
Page No. 15
Book No. XI
Series of 2023

RACHEL G[illegible]AYA W. COPANUT-PANGWI
NOTARY PUBLIC UNTIL Dec. 31, 2023/TAGUIG CITY
Not. Com. Appt. No. 18 (2022-2023)
2/F, Pacura Bldg. 427 M.L. Q. St., Lower Bicutan, Taguig City
PTR No. A-5675511/1-4-2023, Taguig City
IBP O.R. No. 181027-12/27/2022, RSM
MCLE Comp. No. VII-0007104/11-22-2021
ROLL No. 61627